existence and location of services, activities, and facilities that are accessible to and usable by handicapped persons.

§ 1251.302 New construction.

(a) *Design and construction.* Each facility or part of a facility constructed by, on behalf of, or for the use of a recipient shall be designed and constructed in such manner that the facility or part of the facility is readily accessible to and usable by handicapped persons, if the construction (ground breaking) was commenced after the effective date of this part.

(b) *Alteration.* Each facility or part of a facility which is altered by, on behalf of, or for the use of a recipient after the effective date of this part in a manner that affects or could affect the usability of the facility or part of the facility shall, to the maximum extent feasible, be altered in such manner that the altered portion of the facility is readily accessible to and usable by handicapped persons.

(c) *American National Standards Institute accessibility standards.* Design, construction, or alteration of facilities in conformance with the "American National Standard Specifications for Making Buildings and Facilities Accessible to, and Usable by, the Physically Handicapped," published by the American National Standards Institute, Inc., [ANSIA117.1–1961 (R1971)),[1] which is incorporated by reference in this part, shall constitute compliance with paragraphs (a) and (b) of this section. Departures from particular requirements of those standards by the use of other methods shall be permitted when it is clearly evident that equivalent access to the facility or part of the facility is thereby provided.

§§ 1251.303–309 [Reserved]

Subpart 1251.4—Procedures

The procedural provisions applicable to title VI of the Civil Rights Act of 1964 apply to this part. These procedures are found in §§ 1250.106, 1250.108 and 1250.110 of this chapter.

Robert A. Frosch,

Administrator.

[FR Doc. 79–28010 Filed 9–7–79; 8:45 am]

BILLING CODE 7510–01–M

[1] Copies obtainable from American National Standards Institute, 1430 Broadway, New York, N Y 10018.

DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT

Office of the Assistant Secretary for Community Planning and Development

24 CFR Part 570

[Docket No. R–79–704]

Community Development Block Grants; Technical Amendments; Interim Rule

Correction

In FR Doc. 79–26953 appearing on page 50248 in the issue for Monday, August 27, 1979, in the first column of page 50251, seven lines from the bottom of paragraph (ii) of § 570.200(f)(2), change ". . . funds, and a special assessment, as . . ." to read ". . . funds, and a special assessment is levied for $80,000, the apportionment of the special assessment, as . . ."

BILLING CODE 1505–01–M

ENVIRONMENTAL PROTECTION AGENCY

40 CFR Part 401

[FRL 1260–5]

Identification of Conventional Pollutants; Correction

AGENCY: Environmental Protection Agency.

ACTION: Final rule; correction.

SUMMARY: In Federal Register document 79–23646, Monday, July 30, 1979, at 44 FR 44501, EPA published a final rule on the identification of conventional pollutants. On page 44503, Sec. 401.16, item 1 lists "biological oxygen demand (BOD)" as a conventional pollutant. That is an error. The correct listing on item 1 should read "*Biochemical* oxygen demand (BOD)," as was specified in the Agency's action of July 28, 1978 (43 FR 32857), and in the text of the July 30, 1979, notice.

DATE: This correction is effective retroactively to July 30, 1979.

FOR FURTHER INFORMATION CONTACT: Kenneth M. Mackenthun, Director, Criteria and Standards Division (WH–585), Office of Water Planning and Standards, U.S. Environmental Protection Agency, 401 M Street, S.W., Washington, D.C. 20460, Telephone 202/755–0100.

Dated: August 30, 1979.

Swep T. Davis,

Assistant Administrator for Office of Water and Waste Management.

[FR Doc. 79–28128 Filed 9–7–79; 8:45 am]

BILLING CODE 6560–01–M

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

43 CFR Public Land Order 5682

[NM–30563]

New Mexico; Partial Revocation of Executive Order No. 6276

AGENCY: Bureau of Land Management, Interior.

ACTION: Final rule.

SUMMARY: This order will restore 200 acres of land to operation of the public land laws and to location for nonmetalliferous minerals.

EFFECTIVE DATE: October 5, 1979.

FOR FURTHER INFORMATION CONTACT: Louis B. Bellesi, 202–343–8731.

By virtue of the authority contained in section 204 of the Act of October 21, 1976, 90 Stat. 2751, 43 U.S.C. 1714, it is ordered as follows:

1. Executive Order No. 6276 of September 8, 1933, which withdrew public lands in New Mexico to aid the State in making exchange selections as provided by the Act of June 15, 1926, 44 Stat. 746–748, is hereby revoked so far as it affects the following described lands:

New Mexico Principal Meridian

T. 23 S., R. 7 W.,
Sec. 25, SW¼NE¼ and S½NW¼;
Sec. 26, N½NW¼.

The area described contains 200 acres in Luna County.

2. At 10 a.m., on October 5, 1979, the lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m., on October 5, 1979, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The lands have been and continue to be open to applications and offers under the mineral leasing laws and to location under the United States mining laws for metalliferous minerals. They will be open to location for nonmetalliferous minerals at 10 a.m., on October 5, 1979.

Inquiries concerning the lands should be addressed to the Chief, Division of

Technical Services, Bureau of Land Management, P.O. Box 1449, Santa Fe, New Mexico 87501.

Guy R. Martin,

Assistant Secretary of the Interior.

August 30, 1979.

[FR Doc. 79-28008 Filed 9-7-79; 8:45 am]

BILLING CODE 4310-84-M

43 CFR Public Land Order 5680

[I-13259]

Idaho; Partial Revocation of Phosphate Reserve Nos. 2, 13, 19 and 31

AGENCY: Bureau of Land Management, Interior.

ACTION: Final rule.

SUMMARY: This order partially revokes four Executive Orders which withdrew approximately 262,686 acres of land from all forms of disposition, except metalliferous minerals. This action will restore 2,971 acres of public land to operation of the public land laws, including location for nonmetalliferous minerals under the mining laws. 20,738 acres of privately owned lands in which phosphate was reserved to the United States will also be open to location for nonmetalliferous minerals under the mining laws. 238,977 acres of Forest Service lands will be open to such forms of disposition as may by law be made of national forest lands.

EFFECTIVE DATE: October 5, 1979.

FOR FURTHER INFORMATION CONTACT: Evelyn Tauber: 202-343-6486.

By virtue of the authority contained in section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751, 43 U.S.C. 1714, it is ordered as follows:

1. The Executive Orders of July 2, 1910, June 19, 1912, July 9, 1913, and October 9, 1917, creating Phosphate Reserve Nos. 2, 13, 19, and 31, are hereby revoked so far as they affect the following described lands:

Boise Meridian

Phosphate Reserve No. 2, Idaho No. 1, Approved 7/2/10

T. 1 N., R. 42 E.,
Secs. 1 to 3, inclusive;
Secs. 11 to 14, inclusive.
T. 2 N., R. 42 E.,
Sec. 26;
Sec. 27;
Secs. 34 and 35;
Sec. 36, W½NE¼, NW¼, S½.
T. 4 N., R. 42 E.,
Sec. 25;
Sec. 26.
T. 1 N., R. 43 E.,
Sec. 6, Lots 3, 4, 6, 7, SE¼NW¼, E½SW¼, NW¼SE¼, S½SE¼;
Sec. 7;
Sec. 8, NW¼NW¼, S½NW¼, SW¼, NW¼SE¼, S½SE¼;
Sec. 16, Lot 4, S½NW¼, SW¼, NW¼SE¼;
Secs. 17 to 21, Inclusive;
Sec. 22, SW¼NE¼, NW¼, S½;
Sec. 23, NW¼SW¼, S½SW¼;
Sec. 25, NW¼SW¼, S½SW¼;
Sec. 26, NW¼NE¼, S½NE¼, W½, SE¼;
Secs. 27 to 30, inclusive;
Sec. 35;
Sec. 36, NW¼NE¼, S½NE¼, W½, SE¼.
T. 3 N., R. 43 E.,
Sec. 14;
Sec. 24.
T. 4 N., R. 43 E.,
Sec. 2, Lots 1, 2, S½NE¼, SE¼;
Sec. 8, E½;
Ses. 9 to 17, inclusive;
Sec. 20, NE¼;
Secs. 21 to 26, inclusive;
Sec. 27, N½;
Sec. 28, NE¼;
Sec. 31;
Sec. 36, NE¼.
T. 1 N., R. 44 E.,
Sec. 31, Lots 3, 4, E½SW¼
T. 2 N., R. 44 E.,
Sec. 3;
Sec. 4;
Sec. 10.
T. 3 N., R. 44 E.,
Secs. 1 to 4, inclusive;
Sec. 5, Lots 1, 2, 3, 4, S½N½;
Sec. 10, N½;
Sec. 11, N½;
Sec. 12, N½;
Sec. 29;
Sec. 30;
Sec. 32;
Sec. 33.
T. 4 N., R. 44 E.,
Secs. 18 to 21, inclusive;
Secs. 27 to 35, inclusive;
T. 1 N., R. 45 E.,
Secs. 1 to 3, inclusive;
Sec. 12;
Sec. 13.
T. 2 N., R. 45 E.,
Sec. 1;
Sec. 2;
Sec. 11;
Sec. 12.
T. 3 N., R. 45 E.,
Sec. 7;
Sec. 17;
Sec. 18, Lots 1 to 7, inclusive, NE¼, E½NW¼, SE¼SW¼, S½SE¼;
Sec. 20;
Sec. 21, Lots 1, 2, N½, SW¼, W½SE¼;
Sec. 25, Lots 3, 4, S½NW¼, S½;
Sec. 26;
Sec. 27;
Sec. 28, Lots 1, 2, 3, 4, S½N½;
Sec. 29, Lots 1, 2, S½NE¼;
Secs. 34 to 36, inclusive.
T. 2 N., R. 46 E.,
Secs. 5 to 8, inclusive.
T. 3 N., R. 46 E.,
Sec. 5, Lots 1, 2, 3, 4, 5, 6, SW¼NW¼, SE¼NW¼, SW¼;
Sec. 8;
Sec. 17;
Sec. 20;
Sec. 29;
Sec. 31;
Sec. 32.
T. 1 S., R. 44 E.,
Sec. 4, Lot 4, SW¼, SW¼SE¼;
Sec. 5;
Sec. 10, NW¼.
T. 1 S., R. 45 E.,
Sec. 19, Lots 6, 7, SE¼SW¼;
Sec. 29, SW¼, S½SE¼;
Sec. 30, Lots 1, 2, 3, 4, W½NE¼, SE¼NE¼, E½W½, SE¼;
Sec. 31;
Sec. 32;
Sec. 33, Lots 3, 4, SW¼NE¼, SE¼NW¼, W½NW¼, SW¼, W½SE¼;
Sec. 34, SW¼SW¼.

Phosphate Reserve No. 13, Idaho No. 3, Approved 6/19/12

T. 1 N., R. 41 E.,
Sec. 1;
Sec. 2;
Sec. 3, Lots 1, 2, S½NE¼, SE¼;
Sec. 11, N½, SE¼;
Sec. 12;
Sec. 13, N½, SE¼.
T. 2 N., R. 41 E.,
Sec. 24, NE¼, S½;
Sec. 25;
Sec. 26, NE¼, S½;
Sec. 34, E½;
Sec. 35;
Sec. 36.
T. 1 N., R. 42 E.,
Secs. 4 to 10, inclusive;
Secs. 15 to 18, inclusive;
Sec. 19, NE¼;
Sec. 20, N½, SE¼;
Secs. 21 to 26, inclusive;
Sec. 27, N½, SE¼;
Sec. 28, NE¼;
Sec. 35, NE¼;
Sec. 36, N½, SE¼.
T. 2 N., R. 42 E.,
Sec. 14, SW¼,
Sec. 15;
Sec. 17, S½;
Sec. 18, SE¼;
Secs. 19 to 22, inclusive;
Sec. 23, W½NE¼, W½, SW¼;
Sec. 25, W½NW¼, SW¼;
Secs. 28 to 33, inclusive.
T. 1 N., R. 43 E.,
Secs. 31 to 34, inclusive.
T. 1 S., R. 43 E.,
Secs. 1 to 4, inclusive;
Sec. 5, Lots 1, 2, 3, E½SE¼, SE¼SE¼;
Sec. 9, NE¼, N½NW¼, NE¼SE¼;
Secs. 10 to 14, inclusive;
Sec. 15, NE¼, NE¼NW¼, NE¼SE¼;
Sec. 23, N½NE¼, SE¼, NE¼;
Sec. 24, N½, N½SW¼, SE¼SW¼, SE¼;
Sec. 25, NE¼NE¼.
T. 1 S., R. 44 E.,
Secs. 6 to 9, inclusive;
Sec. 10, S½;
Sec. 11, SW¼SW¼;
Sec. 13, W½SW¼, SE¼SW¼;
Sec. 14, SW¼NE¼, W½, SE¼;
Secs. 15 to 23, inclusive;
Sec. 24, W½NE¼, SE¼NE¼, W½, SE¼;
Secs. 25 to 29, inclusive;
Sec. 30, Lots 1, 2, NE¼, N½SE¼, SE¼SE¼;
Sec. 32, NE¼, NE¼NW¼;
Sec. 33, N½, E½SW¼, SE¼;
Secs. 34 to 36, inclusive.